



File No.: EXP202102805

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint on 08/08/2021 with the Spanish Agency for Data Protection (AEPD). The complaint is directed against JEG'S LIFE STYLE, S.L., with NIF B61273678 (hereinafter, the defendant or JEG'S LIFE).

The complaint is based on the following facts: <>

Attached to the complaint are the following documents:

- A copy of an email sent on 26/07/2021 by B.B.B. (joint administrator 1 of the defendant), from his account ***EMAIL.1, addressed to the complainant and 16 other recipients: "(...)". Among the recipients of that email is D.D.D. (joint administrator 2 of the defendant company).

As "Subject" and "Attachments" to the aforementioned email, it states, respectively: "LETTER DISCIPLINARY DISMISSAL A.A.A. 2.doc". The attached document is a letter in which the complete details of the sender, JEG'S LIFE, and those of the recipient and current complainant appear on the first page: his name, two surnames, and his postal address.

The letter is unsigned and dated "May 2020". In it, the defendant company informs the complainant that it has decided to proceed with his disciplinary dismissal due to "the irregularities in his management that constitute a serious breach of contractual good faith," irregularities that are detailed in the document.

- A copy of an email sent on 18/07/2021 by joint administrator 1, from his account ***EMAIL.1, in which the "Subject" states: "Both lied in the last trials." The recipient of the email is the account ***EMAIL.2, with a copy to the complainant and two other people (...).

Although this email does not reference the sending of attachments, the complainant has submitted along with that electronic message a document that, supposedly, is

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/19

attached to it, which includes this information: "7:31. Sent:

Curriculum of A.A.A.. Immediately below, a C.V. of the claimant with his personal data: name and two surnames, NIF, mobile phone, email, LinkedIn page, the jobs held between 2001 and 2017, "Academic Training" and "Non-formal Training."

In the text of the email, various considerations are made about the claimant: his knowledge of computers, his work at the City Council of Girona, the name of the person he lives with, and that he has lied since September 25 in all trials.

- An email thread that ends with the one sent on 30/05/2020 by the joint administrator 1 from his account ***EMAIL.1. to the claimant and a third person – C.C.C. – with copies to three others: (...).

As "Attached Data" to the email, it lists: "image001.png; ATT00001.htm; company certificate A.A.A..pdf; ATT00002.htm." The "Subject" of the email states "BAIXA SEURETAT SOCIAL SR.

A.A.A.". However, the subject does not concern this last person but rather the claimant, as the attached document is a "Company Certificate for the application for work incapacity" issued on 26/05/2020 by the legal representative of JEG'S LIFE, which includes the personal data of the claimant: in addition to his name and two surnames, his NIF, the complete data of his usual address, the Social Security affiliation number, the contribution group, the dates of entry and exit from the company, the date of medical leave due to work incapacity, and the "Contribution Bases for common contingencies and for AT/EP, according to TC-2, during the last 180 days preceding the termination of the employment contract."

The email dated 30/05/2020 is preceded by others. The first of them, dated 29/05/2020, which the

management office XXXXX sent to the accounts of the joint administrators 1 and 2, respectively ***EMAIL.3 and ***EMAIL.4, in which they inform them that following their instructions “we have terminated the social security for SR. A.A.A. due to dismissal effective 26/05/2020, having confirmed that today the amount of the compensation has been transferred to him. Attached is the company certificate that should be signed and sent to the worker so that he can request direct payment of his leave starting from 27/05/2020.”

The holder of one of the accounts receiving the email sent by the management office - joint administrator 1, holder of the account ***EMAIL.3 forwarded the email on 29/05/2020 to C.C.C. three times: at 14:11:57, at 19:27:03, and at 20:21:49 hours.

- An email sent by the claimant on 29/07/2021 from his account ***EMAIL.5 to the address ***EMAIL.4. The “Subject” states “Suppression of my personal data” and as “Attached Data” “DNI.pdf; AEPD_SUPRESION DATOS.pdf”. The claimant requests the recipient, administrator of JEG'S LIFE, to delete his personal data from the companies JEG'S LIFE STYLE, S.L., SBTRAVELMANAG, S.L., and any other company in the group that has them and explains that his request is motivated by “the unlawful use that has been made of his documentation since administrator B.B.B. has disseminated my personal documents [...] to third parties without my consent, and you, D.D.D., as administrator also of the

3/19

companies, and copying many of the emails, has done nothing in this regard.”

A copy of the message received from ***EMAIL.6 confirming the delivery of the message to its recipient is provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to JEG'S LIFE for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding was carried out electronically, in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), with the date of availability being 06/10/2021 and the date of acceptance of the notification being 11/10/2021.

The file contains the certificate issued by the Support Service of the Electronic Notification Service and the Authorized Electronic Address of the National Mint and Stamp Factory (hereinafter, FNMT certificate) which certifies this.

JEG'S LIFE did not respond to the forwarding of the complaint sent to it by the Subdirectorate of Data Inspection of the AEPD.

THIRD: On 23/12/2021, in accordance with the provisions of Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

The admission for processing of the complaint was electronically notified to the complainant on the same date.

FOURTH: Agreement to initiate the sanctioning procedure.

On 03/08/2022, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5.a) of the GDPR.

FIFTH: Notification of the agreement to initiate the sanctioning procedure.

The agreement was electronically notified to the respondent, as they are required to communicate with the Administration by this means in accordance with Article 14 of the LPACAP. The notification was made available on the electronic headquarters on 04/08/2022, and on 15/08/2022, there was an automatic rejection. This is certified by the certificate issued by the FNMT that is part of the file.

It should be noted that Article 41.6 of the LPACAP establishes that Public Administrations, public bodies, or entities of public law linked or dependent will send the interested party a notice informing them of the availability of the notification either at the Unique Authorized Electronic Address, or at the electronic headquarters or associated electronic headquarters of the Administration, or Body or Entity,

or, where appropriate, in both. The failure to carry out this notice, of a mandatory nature, should be taken into account.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
4/19

merely informative, shall not prevent the notification from being considered fully valid.

Royal Decree 203/2021, of March 30, which approves the Regulation for the action and operation of the public sector by electronic means, includes in its Article 43.2 the following provision:

“2. When the interested party is a subject obliged to communicate by electronic means and the issuing Administration of the notification does not have electronic contact data to carry out the notice of its availability, in the procedures initiated ex officio, the first notification made by the Administration, agency, or entity shall be carried out on paper in the manner determined by Article 42.2 of Law 39/2015, of October 1, warning the interested party in that first notification that subsequent notifications will be made electronically by appearance at the corresponding electronic headquarters or associated electronic headquarters or, where applicable, through the Unique Enabled Electronic Address as provided for notifications by the respective Administration, agency, or entity, and informing them that, in accordance with the provisions of Article 41.1 of Law 39/2015, of October 1, they may identify an electronic device, an email address, or both for the notice of the availability of subsequent electronic notifications.” (The underlining is ours)

In compliance with the transcribed regulation, the agreement to open the case was notified to the defendant party by postal mail. The following documents issued by the State-owned Company Correos y Telégrafos, S.A. (hereinafter, Correos) are included in the file as proof:

i. The “Certification of impossibility of delivery” which states that the shipment for JEG'S LIFE STYLE, S.L., at the address Avenida Castell de Montbui 266, 08415 Bigues I Riels (Barcelona), was returned to origin due to excess (not collected at the office) on 09/16/2022, having the following associated information: “First delivery attempt on 09/07/2022, at 14:14 by employee 485733 was marked as Absent.”

ii. The certification dated 10/19/2022 issued “at the request of AGENCIA ESPAÑOLA DE PROTECCION DE DATOS, in the capacity of sender” with the information existing in its Computer Systems regarding the shipment XXXXXXXXXXXXXXXXXXXX to JEG'S LIFE STYLE, S.L., with this result: “Delivered to the sender on 09/28/2022 at 11:50. Having the following associated information: [...]

1st delivery attempt on 09/07/2022 at 14:14

2nd delivery attempt on 09/08/2022 at 17:33.”

The last clause of Article 42.2 of the LPACAP, regarding the practice of notifications on paper, to which Article 43.2 of Royal Decree 203/2021 refers, establishes that “If the second attempt also proves unsuccessful, the procedure shall be carried out in the manner provided for in Article 44.” Article 44 of the LPACAP, concerning “Unsuccessful Notification,” provides that in such cases the notification shall be made by means of an announcement published in the “Official State Gazette.”

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
5/19

The "Supplement of Notifications" of the BOE dated 10/24/2022 published a notice by which the party being claimed was notified of the "Agreement of Opening" of procedure PS/00012/2022 and was informed that "within a maximum period of 10 working days counted from the day following the publication of this notice, the interested party for the purposes of this notification or their representative may request, proving their identity, a copy of the document corresponding to the administrative act indicated, for knowledge of its full content, by requesting it through the Electronic Headquarters of the Agency (<https://sedeagpd.gob.es/sede-electronica-web/>), or appearing from Monday to Friday from

9:00 to 14:30 at the Citizen Attention Service of the Spanish Agency for Data Protection, Calle Jorge Juan, 6, 28001 Madrid."

SIXTH: No allegations are made against the initiation agreement.

The initiation agreement has been notified in accordance with the LPACAP and Royal Decree 203/2021, and the period for making allegations against said agreement has elapsed without any submission being recorded in this Agency by the party being claimed.

SEVENTH: Application of Article 64.2.f) of the LPACAP.

Article 64.2.f) of the LPACAP - provision of which was informed in the opening agreement of the procedure - establishes that if, within the established period, no allegations are made regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution.

In the initiation agreement of this sanctioning file, the conduct in which the violation of the GDPR for which the party being claimed was held responsible was specified. Furthermore, the infringing conduct was evidenced through the documents that the claiming party provided with their complaint: the emails that the claimed party had sent to several individuals in which personal information concerning the claiming party was provided in the text and in the attached documents. The initiation agreement also determined the administrative fine that could be imposed under Article 58.2.i) of the GDPR; the circumstances, among those contemplated in Article 83.2 of the GDPR, that in this case were applicable as aggravating factors, as well as the amount of the fine that could be imposed: €20,000. Additionally, the initiation agreement of the sanctioning file indicated that a corrective measure could be adopted, in accordance with Article 58.2.d) of the GDPR, ordering the claimed party to delete the personal data of the claimant in accordance with Article 17.1.a) of the GDPR.

Taking into consideration the arguments presented and that the claimed party has not submitted allegations to the initiation agreement, under the provisions of Article 64.2.f) of the LPACAP, we consider that the initiation agreement issued in this sanctioning file has the status of a proposal for resolution.

In view of the actions taken, the following

PROVEN FACTS

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/19

FIRST: The claimant alleges that "B.B.B., administrator of the company JEG'S LIFE STYLE SL, where I worked in 2019 and 2020, has disclosed my private information via email to third parties."

SECOND: The following emails sent by B.B.B. (joint administrator 1 of JEG'S LIFE) from his account XXXXXXXX are included in the file, submitted by the claimant:

a. The one sent on 07/26/2021 to both the claimant and 16 other recipients: "(...)". Among the recipients of that email is D.D.D. (joint administrator 2 of the defendant company). The email states as "Subject" and "Attachments," "LETTER DISMISSAL A.A.A. 2.doc." The attached document is a letter that contains on its first page the complete details of JEG'S LIFE and the recipient, the current claimant: his name, two surnames, and his postal address. In the letter, dated "May 2020," the defendant company informs the claimant that it has decided to proceed with his disciplinary dismissal for "the irregularities in his management that constitute a serious breach of contractual good faith," irregularities that are detailed in the document.

b. The one sent on 07/18/2021, which has as "Subject": "Both lied in the last trials." The recipient of the email is the account ***EMAIL.2 with a copy to the claimant and two other people: (...). In the text of the email, various considerations are made about the claimant: his computer knowledge, his work at the Girona City Council, the name of the person he lives with, and that he has lied since September 25 in all trials.

c. An email thread that ends with the one sent on 05/30/2020 by joint administrator 1 from his account

***EMAIL.1 to the claimant and a third person – C.C.C. – with copies to three others: Francesc Duran; Jordi Grima; and Eduard Grima. As “Attachments” to the email, it lists: “image001.png; ATT00001.htm; company certificate A.A.A..pdf; ATT00002.htm.” As “Subject,” the email states “SOCIAL SECURITY DISMISSAL MR. A.A.A.” However, the subject does not concern this last person but rather the claimant, as the attached document is a “Company Certificate for the application for labor incapacity” issued on 05/26/2020 by the legal representative of JEG'S LIFE, which includes the personal data of the claimant: in addition to his name and two surnames, his NIF, complete habitual address, social security affiliation number, contribution group, dates of entry and exit from the company, the date of medical leave due to labor incapacity, and the “Contribution bases for common contingencies and for AT/EP, according to TC-2, during the last 180 days preceding the termination of the employment contract.” This email is preceded by others, the first of which is from 05/29/2020 sent by the management agency XXXXX to the accounts of joint administrators 1 and 2, respectively

***EMAIL.3 and ***EMAIL.4, in which they are informed that following their instructions “we have canceled the social security for MR. A.A.A. due to dismissal effective 05/26/2020, having confirmed that today the amount of the compensation has been transferred to him. Attached is the company certificate that should be signed and sent to the worker so that he can request direct payment of his leave starting from 05/27/2020.” Joint administrator 1, holder of account XXXXXXXX, forwarded the email on 05/29/2020 to C.C.C. three times: at 14:11:57, at 19:27:03, and at 20:21:49 hours.

THIRD: The claimant requested JEG'S LIFE to delete his personal data, both those handled by the defendant and any other company in the group, among which he expressly mentions SBTRAVELMANAG, S.L., through an email sent on 07/29/2021 to the address ***EMAIL.4, which belongs to a joint administrator (identified as number 2) according to the information published by the Mercantile Registry. He attached a copy of his ID. A copy of the message received from ***EMAIL.6 confirming the delivery of the message sent requesting the deletion of the data is included in the file, submitted by the claimant.

FOURTH: The defendant accepted the electronic communication made by the Subdirector of Data Inspection of the AEPD in which the complaint was forwarded to them. However, they did not respond to the information request.

FIFTH: The defendant has not made allegations against the initiation agreement of the sanctioning procedure that was notified, in accordance with the provisions of Article 43.2 of Royal Decree 203/2021, in the manner provided for in Article 44.2 of the LPACAP. Furthermore, the initiation agreement was notified electronically, resulting in the rejection of the notification in accordance with Article 43.2 of the LPACAP.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions...

8/19

regulatory provisions issued in its development and, insofar as they do not contradict them, with a subsidiary nature, by the general rules on administrative procedures.”

II

Applicable legal norms

The GDPR refers to the principles governing the processing of personal data in Article 5, “Principles relating to processing,” which states:

“1. Personal data shall be:

[...]

f) processed in a manner that ensures an adequate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality'); [...]

2. The data controller shall be responsible for compliance with the provisions of paragraph 1 and shall be able to demonstrate it ('proactive accountability')."

Article 4 of the GDPR, "Definitions," establishes that, for the purposes of this Regulation, "processing" shall mean "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure, or destruction."

III

Processing in which the infringement of the principle of confidentiality is specified.

1. The documentation in the file evidences that there was an employment relationship between JEG'S LIFE and the claimant that began on 28/02/2019 and was terminated on 26/05/2020 due to the dismissal of the worker.

The employment relationship between the parties enabled the respondent to process personal data of the worker when the processing was necessary, either for the development and execution of the employment contract - lawful basis established in Article 6.1.b of the GDPR - or to comply with obligations imposed by laws or a collective agreement - lawful basis described in Article 6.1.c of the GDPR - or to satisfy legitimate interests of the employer or a third party, provided that the fundamental rights and freedoms of the worker did not prevail - legal basis included in paragraph f of Article 6.1 of the GDPR.

All processing of personal data is subject to the principles established in Article 5.1 of the GDPR, including that of confidentiality (paragraph f).

In the case examined, JEG'S LIFE - through its joint administrator 1, B.B.B. - communicated to third parties data concerning the claimant, to which it had access by virtue of the employment relationship that had existed between both parties.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/19

violating the obligation of confidentiality of the data subject to processing imposed by the GDPR.

The processing of the claimant's data contrary to the GDPR under examination occurred after the termination of the employment relationship, which does not prevent the responsible party from continuing to be obliged to observe the confidentiality principle of Article 5.1.f) of the GDPR.

2. The documentation in the file proves that JEG'S LIFE, through its joint administrator 1, processed the personal data of the claimant when the employment relationship had ended, even in some cases when more than a year had passed since its termination, for a purpose unrelated to that for which it had been lawfully collected, which violated the obligation of confidentiality.

The infringement of the confidentiality principle for which JEG'S LIFE is held responsible is materialized in the following processing carried out by that entity:

a. On 30/05/2020, a few days after the employment relationship had ended, the legal representative of JEG'S LIFE, its joint administrator 1, sent an email, which included as an attached document a copy of the "Company Certificate for the Request for Labor Disability" belonging to the claimant, in addition to the claimant himself, who was its natural recipient, and joint administrator 2, who, on the other hand, was aware of it as he had legitimately received it a day earlier from the manager (management XXXXX), to three people: (...).

The company certificate of the former employee contained numerous personal data. In addition to his name and two surnames, his NIF, the complete data of his usual address, the Social Security affiliation number, the contribution group, the dates of registration and deregistration from the company, the date

of medical leave due to labor disability, and the "Contribution Bases for common contingencies and for AT/EP, according to TC-2, during the last 180 days preceding the termination of the employment contract."

The two joint administrators received on 29/05/2020 the company certificate of the claimant in their respective accounts, ***EMAIL.3 and ***EMAIL.4, as an attached document to an email sent to them by the management for them to sign and deliver to the worker so that he could process the request for labor disability.

JEG'S LIFE was obliged to issue the company certificate so that the former employee could request labor disability, making him the recipient of the certificate. However, the defendant facilitated access to the document to third parties who were not authorized to process his personal data: (...).

b. JEG'S LIFE, through its joint administrator 1, from his account ***EMAIL.1, sent on 18/07/2021 an email to the holder of account ***EMAIL.2, with a copy to the claimant and two other people: (...). The "Subject" in the email states: "Both lied in the last trials."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/19

While the claimant has provided a document that, in their opinion, was sent by the responding party attached to the email dated 07/18/2021— a document that contains their Curriculum Vitae, which includes, in addition to their personal data (name, two surnames, and NIF), their mobile phone, email, LinkedIn page, the job positions held between 2001 and 2017, the "Academic Training," and the "Non-Formal Training"—this fact has not been substantiated in any way.

In the email sent by the joint administrator 1 on 07/18/2021, there is no mention of the sending of attached documents. Thus, there are no elements of judgment to consider, in line with what the claimant has alleged, that the responding party provided that documentation to the three recipients of the email.

Therefore, the conduct referred to in this section b) constitutes a violation of the principle of confidentiality insofar as the responding party, by sending the email to ***EMAIL.2, (...), (...), communicated the information regarding the claimant's email account, in addition to the information concerning their person that was stated in the text of the email message.

c. The legal representative of JEG'S LIFE, their joint administrator 1, sent on 07/26/2021 from their email account ***EMAIL.1 an email addressed to the claimant and 16 other recipients: "(...)".

The email had as "Subject" and as "Attachments" "LETTER DISMISSAL DISCIPLINARY A.A.A. 2.doc".

The attached document is a letter in which the first page contains the details of the sender, JEG'S LIFE, and those of the current claimant, their name, two surnames, and their postal address. In the letter, dated "May 2020," the responding party informs the claimant that they have decided to proceed with their disciplinary dismissal due to "the irregularities in their management that constitute a serious breach of contractual good faith," irregularities that are detailed in that writing. In short, through the email sent, they communicated to sixteen recipients the details of the name, surnames, postal address, and email address of the claimant.

IV

Violation of the principle of confidentiality

1. JEG'S LIFE is held responsible for a violation of Article 5.1.f) of the GDPR concerning the principle of confidentiality.

Recital 39 of the GDPR states that "Personal data must be processed in a manner that ensures appropriate security and confidentiality of personal data, including to prevent unauthorized access to or use of such data and the equipment used for processing."

The Judgment of the Constitutional Court (STC) 292/2000 states regarding the content of the right to the protection of personal data (Legal Basis 7):

C/ Jorge Juan, 6

www.aepd.es

“[...] it results that the content of the fundamental right to data protection consists of a power of disposition and control over personal data that enables the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which data this third party may collect, and that also allows the individual to know who possesses that personal data and for what purpose, being able to oppose such possession or use. These powers of disposition and control over personal data, which are part of the content of the fundamental right to data protection, are legally concretized in the ability to consent to the collection, obtaining, and access to personal data, its subsequent storage and processing, as well as its possible use or uses, by a third party, whether the State or a private individual. And this right to consent to the knowledge and processing, whether computerized or not, of personal data requires, as indispensable complements, on the one hand, the ability to know at all times who disposes of that personal data and to what use they are subjecting it, and, on the other hand, the power to oppose such possession and uses.” (The underlining is ours) The documentation in the file certifies that JEG'S LIFE, through its legal representative, the joint administrator 1, provided third parties with information concerning the claimant to which it had access within the framework of the employment relationship that both maintained.

By virtue of the principle of proactive responsibility (“accountability”) established in Article 5.2 of the GDPR, it is the responsibility of the data controller to comply with the principles of Article 5.1 of the GDPR, particularly the principle of confidentiality, as well as to be able to demonstrate compliance. As stated by the Legal Office of the AEPD (among others, in reports 17/2019 and 64/2020), the GDPR has represented a paradigm shift in addressing the regulation of the right to personal data protection, which is now based on the principle of “proactive responsibility” (“accountability”). In this sense, the explanatory memorandum of the LOPDGD states that “the greatest novelty presented by Regulation (EU) 2016/679 is the evolution from a model fundamentally based on compliance control to one that rests on the principle of active responsibility, which requires a prior assessment by the controller or processor of the risks that the processing of personal data may generate, in order to adopt the appropriate measures based on that assessment.”

Opinion 3/2010, from the Article 29 Working Party (GT29) - WP 173 - issued during the validity of Directive 95/46/EC, which has been repealed by the GDPR, but whose reflections are applicable today, states that the “essence” of proactive responsibility is the obligation of the data controller to apply measures that, under normal circumstances, ensure that the rules on data protection are complied with in the context of processing operations and to have available documents that demonstrate to data subjects and to the supervisory authorities what measures have been adopted to achieve compliance with data protection regulations.

In the factual case at hand, the processing of the claimant's personal data constitutes a violation of Article 5.1(f) of the GDPR.

It has been fully established through the documentation provided with the complaint that is detailed in the preceding Foundation.

JEG'S LIFE has not presented any allegations against the initiation agreement of the sanctioning procedure despite the fact that the agreement was legally notified to it. The party being complained against also did not respond to the informational transfer made by the Subdirectorate of Inspection of the AEPD, prior to the admission of the complaint filed against it, despite it being evidenced that it accessed the communication sent electronically.

2. Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP) provides in Article 28.1 that “Only individuals and legal entities who are responsible for acts constituting administrative infractions may be sanctioned, [...] if they are found liable for them due to intent or negligence.” (The

underlining is ours)

Recital 74 of the GDPR states on this matter:

“The responsibility of the data controller for any processing of personal data carried out by themselves or on their behalf must be established. In particular, the controller must be obliged to implement appropriate and effective measures and must be able to demonstrate compliance of the processing activities with this Regulation, including the effectiveness of the measures. Such measures must take into account the nature, scope, context, and purposes of the processing as well as the risk to the rights and freedoms of natural persons.”

In the initiation agreement of the sanctioning procedure, having appreciated as an aggravating circumstance the concurrence of the circumstance of Article 83.2.b) of the GDPR - “Intentionality or negligence in the infraction” - this statement was included: “In the present case, in light of the documentation in the file, it is clearly evidenced that the party being complained against acted with the direct intention of disclosing to third parties information concerning the complainant.”

Intent must always be subject to proof. In the case we are examining, liability due to intent was inferred from the repeated conduct of the party being complained against in which it disclosed to third parties information concerning the complainant.

It should be noted, however, that while the liability due to intent is not sufficiently established, the severely culpable conduct or gross negligence of the data controller is fully evidenced. Thus, the element of culpability, necessary for the emergence of sanctioning liability, would be constituted by the lack of diligence demonstrated by the party being complained against in complying with the confidentiality principle to which it is obliged by Article 5.1.f) of the GDPR.

In this regard, it is worth mentioning the Judgment of the National Court, Administrative Litigation Chamber, Section 1, of 04/13/2005 (Rec. 230/2003), which, after stating that objective liability is prohibited in our legal system and that the principle of culpability guaranteed by the Constitution must always be respected - it is inferred from the principles of legality and prohibition of excess, Article 25 C.E., or from the inherent requirements of a Rule of Law - states the following regarding culpable commission:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
13/19

"In the present case, it is necessary to take into consideration [...] that when there is a specific duty of vigilance, fault is constituted by the mere breach of the duty of vigilance, without any further proof being necessary when assessing whether there has been a transgression of the duty to maintain secrecy. This criterion results from judgments such as that dated December 18, 2002 (appeal 1096/2000) in a case very similar to the one currently at hand, and whose arguments are perfectly transferable to the present case, according to which 'Well, the conduct that constitutes the administrative offense - article 44.2.e) of Organic Law 5/1992 - requires the existence of fault, which, for the purposes of this matter, is concretized in the mere breach of the duty to maintain secrecy, a duty that is transgressed when information is provided to third parties regarding the data that the appealing entity has about the holder of a bank account, (...) since the banking entity did not observe diligent conduct aimed at safeguarding the aforementioned duty of secrecy, and this conduct is sufficient to consummate the infringement provided for in the aforementioned article.' (The emphasis is ours)

4. In light of the preceding exposition, it is concluded that the respondent party incurred in an infringement of article 5.1.f) of the GDPR, materialized in the communication to third parties of the personal data of the complainant, a processing that has been fully evidenced and is detailed in Foundation III, being this entity liable by way of fault for a serious lack of diligence in complying with the provisions of the GDPR.

V

Classification of the infringement of article 5.1.f) GDPR

The infringement of article 5.1.f) of the GDPR attributed to the respondent party is classified in article

83.5.a) of the GDPR:

“5. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under articles 5, 6, 7, and 9; [...]

The LOPDGDD, solely for the purpose of determining the limitation period for infringements, provides in its article 72, under the heading “Very serious infringements”:

“1. In accordance with what is established in article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in article 5 of Regulation (EU) 2016/679.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/19

VI

Administrative fine sanction

Article 70.1 of the LOPDGDD provides that those responsible for processing are subject to the sanctioning regime established in the GDPR and in this organic law: “a) The controllers of the processing.”

The corrective powers attributed to the AEPD as the supervisory authority are detailed in article 58.2 of the GDPR, paragraphs a) to j), among which the provision includes the power to impose an administrative fine in accordance with article 83 of the GDPR (article 58.2.i).

As indicated in the initiation agreement of the sanctioning file, in the present case it is considered appropriate to sanction JEG'S LIFE for the infringement of article 5.1.f) of the GDPR with an administrative fine.

Article 83 of the GDPR, “General conditions for the imposition of administrative fines,” states in paragraph 1 that the supervisory authority shall ensure that the imposition of fines for the infringements of this Regulation indicated in its paragraphs 4, 5, and 6 complies, in each individual case, with the principles of effectiveness, proportionality, and deterrence.

The principle of proportionality entails a correlation between the infringement and the sanction, with the prohibition of unnecessary or excessive measures, so that it must be suitable to achieve the purposes that justify it. The requirement imposed by article 83.2 of the GDPR that administrative fines be not only effective and deterrent but also proportionate obliges consideration of the turnover or activity figure of the respondent. On this aspect, the available information is only the amount of the entity's share capital, which according to the Commercial Registry amounts to 173,726 euros.

On the other hand, article 83.2 of the GDPR provides a list of criteria or factors that must be taken into account to determine the amount of the fine. In the initiation agreement of the procedure, the concurrence of the following circumstances of article 83.2 of the GDPR that operate as aggravating factors was appreciated:

- Article 83.2.a) GDPR: the severity of the infringement, taking into account the scope or purpose of the processing operation in question.

As stated then, various criteria indicate the severity of the conduct contrary to the GDPR from the perspective of the “scope” or “purpose” of the processing carried out:

(i) There have been three data processing operations carried out by the respondent party in which it has violated the principle of confidentiality.

(ii) The breach of the confidentiality of the complainant's personal data has had a huge scope as there have been numerous recipients of the emails sent by the respondent in which personal information of

the affected party was revealed.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

15/19

(iii) The purpose of the treatments carried out by the respondent has been, precisely, the same as that which materializes the conduct contrary to the GDPR.

- Article 83.2.b) GDPR: "Intentionality or negligence in the infringement."

As stated in Recital IV, subsection 2, of this resolution, although the initiation agreement stated that "In this case, in light of the documentation in the file, it is clearly evident that the respondent acted with the direct intention of disclosing to third parties information concerning the complainant," the truth is that - despite the existence of indications that the respondent acted with intent - intent must always be proven.

However, it is indisputable and fully evidenced that the conduct of the responsible party, JEG'S LIFE, was gravely culpable or grossly negligent in relation to the processing of the complainant's data, which constitutes the infringement of Article 5.1.f) of the GDPR that we are addressing.

In this regard, we refer to both the SAN, Administrative Litigation Chamber, Section 1, of 13/04/2005 (Rec. 230/2023) and the fact that, given the specific duty of the respondent to ensure the confidentiality of the data in its possession, the processing it has carried out reveals that it did not adopt any measures aimed at ensuring it.

- Article 83.2.g) GDPR: "The categories of personal data affected by the infringement."

Among the data concerning the complainant whose confidentiality has been violated are not only their name and surname, their habitual address, their email address, the contribution group they had in the respondent company, the dates of entry and exit from the company, the date of medical leave due to work incapacity, and the "Contribution bases for common contingencies and for AT/EP, according to TC-2, during the last 180 days prior to the termination of the employment contract," but also others such as their Social Security affiliation number or their NIF, which identify them unequivocally.

On this point, it should be noted that, although the literal wording of Article 83.2.g) of the GDPR seems to connect this criterion of graduation exclusively with Article 9 of the GDPR and the classification that is implicit in that provision between particularly protected personal data and the rest, there are references in the GDPR to other classifications of data that respond to the purpose pursued by Article 83.2 of the GDPR for the graduation of the administrative fine to be imposed, for the individual case, respecting the principles of proportionality and effectiveness.

Recitals 51 and 75 of the GDPR distinguish a group of personal data that, by their nature, are particularly "sensitive" due to the significant risk that their processing may pose to fundamental rights and freedoms. Their common denominator is the risk they pose to rights and fundamental freedoms, as their processing can lead to physical, material, or immaterial harm.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

16/19

This group or category includes the specially protected data regulated by Article 9 of the GDPR -recital 51 of the GDPR- and, additionally, many others that are not mentioned in that provision. Recital 75 details the personal data whose processing may entail varying degrees of risk and probability for the rights and freedoms of individuals as a consequence of potentially causing physical, material, or immaterial harm. Among these, it refers to those whose processing "may lead to issues of discrimination, identity theft or fraud, financial losses, damage to reputation, loss of confidentiality of data subject to professional secrecy, unauthorized reversal of pseudonymization, or any other significant economic or social harm;"

The numerical identifier of the DNI along with the corresponding verification character of the tax identification number unequivocally identifies a natural person. This quality makes it a particularly

sensitive data since, to the extent that its processing is not accompanied by the necessary technical and organizational measures to ensure that the person identifying themselves with it is indeed its holder, a third party can easily impersonate the identity of a natural person, or, in other words, can commit identity fraud, with the risks that this entails for the privacy, honor, and assets of the impersonated individual.

The breach of the confidentiality principle for which the respondent is held responsible in this resolution has involved, among other data, the DNI/NIF of the complainant, which allows for their unequivocal identification, impacting the severity of the conduct. Reasons that lead to the consideration of the circumstance in section g) of Article 83.2 of the GDPR as an aggravating factor, as was also deemed in the initiation agreement of the sanctioning procedure.

No circumstances under Article 83.2 of the GDPR that would mitigate the responsibility of the respondent or the unlawfulness of their conduct are observed.

In light of these facts, it is agreed to sanction the respondent entity for the violation of Article 5.1.f) of the GDPR, classified under Article 83.5.a) of the GDPR, with an administrative fine (Article 58.2.i) set at €20,000 (twenty thousand euros), considering the circumstances of Article 83.2 GDPR that operate as aggravating factors -sections a), b), and g)-.

VII

Corrective Measures

Article 58.2.d) of the GDPR provides that each supervisory authority may “order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specified manner and within a specified timeframe...”.

The opening agreement of the sanctioning procedure stated that, pursuant to Article 58.2 d) of the GDPR, corrective measures could be imposed on JEG'S LIFE as necessary to align its actions with data protection regulations.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

17/19

for example, ordering the respondent to delete the personal data of the claimant.

It should be noted that the claimant submitted with their complaint a copy of the email sent on 29/07/2021 from their account, ***EMAIL.5 to the address ***EMAIL.4 (D.D.D., joint administrator 2 of the respondent) in which they requested the deletion of their personal data from the companies JEG'S LIFE STYLE S.L., SBTRAVELMANAG, S.L. and any other company in the group that holds it. They also sent a copy of their ID. They explained that their request was motivated by “the unlawful use that has been made of my documentation since the administrator B.B.B. has disseminated my personal documents [...] to third parties without my consent, and you, D.D.D., as an administrator of the companies, having been copied on many of the emails, have done nothing about it.”

The claimant also submitted, with their complaint, a copy of the message received from ***EMAIL.6 confirming the delivery of that message to its recipient.

According to the provisions of Article 83.2 of the GDPR, the imposition of corrective measures (Article 58.2.d of the GDPR) is compatible with the imposition of an administrative fine (Article 58.2.i of the GDPR).

Thus, under Article 58.2.d) of the GDPR, JEG'S LIFE is ordered to respond to the right to deletion of their personal data that the claimant exercised before it (Article 17 of the GDPR) and, furthermore, within 15 days from the date this resolution becomes enforceable, to send to the AEPD the documentation evidencing the response to the right exercised by the claimant and its proper notification.

You are informed that failure to comply with the requirements of this agency may constitute an administrative infringement as defined in Article 83.6 of the GDPR, which could lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on JEG'S LIFE STYLE, S.L., with NIF B61273678, for an infringement of Article 5.1.f) of the GDPR, classified under Article 83.5.a) of the GDPR, an administrative fine in the amount of €20,000 (twenty thousand euros).

SECOND: TO ORDER JEG'S LIFE STYLE, S.L., with NIF B61273678, in accordance with Article 58.2.d) of the GDPR, to respond to the right to deletion (Article 17 of the GDPR) that the claimant exercised before it and to proceed, within 15 days from the date this resolution becomes enforceable, to send to the AEPD documentary evidence of the response and its notification to the claimant.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

18/19

THIRD: NOTIFY this resolution to JEG'S LIFE STYLE, S.L., with NIF B61273678.

FOURTH: Warn the sanctioned party that they must pay the imposed sanction once this resolution becomes executive, in accordance with the provisions of article 98.1.b) of the LPACAP, within the voluntary payment period established in article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with article 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

938-181022

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

19/19

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es